

Court No. - 3

Case :- WRIT - C No. - 4641 of 2022

Petitioner :- Ravendar @ Jhabbu

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajay Vikram Yadav, Sunil Kumar Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the respondent no. 1 and Shri Ashutosh Tiwari holding brief of Shri Baleshwar Chaturvedi, learned counsel for the respondent no. 2.

This writ petition has been filed praying for the following relief:

"(i) a writ, order or direction in the nature of certiorari to quash the impugned order dated 15.07.2020 passed by the respondent no. 2 as well as undated letter issued by the respondent no. 2 against the petitioner (Annexure-1A & 6 to the writ petition)."

Shri Ashutosh Tiwari, learned counsel for the respondents no. 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the respondent No. 2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 31.5.2022

o.k.